

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Shohrwardi

Criminal Revision No. 545 of 2009

Shariful Islam

.....Convict Petitioner

-versus-

The State

.....Opposite Party

None appears

.... For the convict petitioner

Mr. S.M. Golam Mostofa, DAG with

Mr. Md. A. Mannan, AAG

....For the State

Heard on 29.05.2024, 01.07.2024

Judgment delivered on 07.07.2024

On an application filed under section 439 of the Code of Criminal Procedure, 1898 Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 16.3.2009 passed by Sessions Judge, Lalmonirhat in Criminal Appeal No. 29 of 2008 affirming the judgment and order of conviction and sentence dated 24.02.2008 passed by the Additional Chief Judicial Magistrate, Lalmonirhat in C.R. Case No. 126 of 2005 (Ka) convicting the petitioner under section 4 of the Dowry Prohibition Act, 1980 and sentencing him thereunder to suffer rigorous imprisonment for 3(three) years and fine of Tk. 3000, in default, to suffer imprisonment for 3 months should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The prosecution case, in short, is that marriage solemnized on 02.12.2004 between the accused Shariful Islam and the complainant Rina Begum was registered on 24.05.2005 but at the time of registration of the marriage, the accused demanded dowry of Tk. 25,000, out of which, the father of the complainant paid dowry of Tk. 5000. Subsequently, the accused threatened the complainant to pay the unpaid dowry amounting to Tk. 20,000 and sent his wife to her father's house for said unpaid dowry. On 24.06.2005 at 4.00 pm, she came back to the house of the accused and requested him to enjoy their conjugal life without dowry. But at the instigation of the other accused persons, accused Shariful Islam refused to lead their conjugal life with the complainant without payment of the unpaid dowry. After that, the complainant filed the complaint petition on 30.06.2005.

During the trial, charge was framed against the accused Shariful Islam under section 4 of the Dowry Prohibition Act, 1980 and the accused Yeakub Ali and another under section 3 of the Dowry Prohibition Act, 1980 which was read over to the accused persons and they pleaded not guilty to the charge and claimed to be tried following the law. The prosecution examined 3 witnesses to prove the charge against the accused persons and the defence cross-examined the prosecution witnesses. After examination of the prosecution witnesses, the accused was examined under Section 342 of the Code of Criminal Procedure, 1898 and the defence declined to adduce any DW.

After concluding the trial, the Additional Chief Judicial Magistrate, Lalmonirhat by judgment and order dated 24.02.2008 convicted the accused under section 4 of the Dowry Prohibition Act, 1980 and sentenced him to suffer rigorous imprisonment for 03(three) years and a fine of Tk. 3000, in default, to suffer imprisonment for 3(three) months against which the convict petitioner filed Criminal Appeal No. 29 of 2008 before the Sessions Judge, Lalmonirhat who after hearing the appeal by impugned judgment

and order dated 16.03.2009 dismissed the appeal against which the convict petitioner obtained the instant Rule.

P.W. 1 Most. Rina Begum is the complainant. She stated that the accused Shariful Islam married her on 24.05.2005 by registered Kabinnama and on the same date the accused demanded dowry to the complainant. The father of the complainant paid Tk. 5,000 at the time of marriage and in the meantime on 24.06.2005 the accused demanded the unpaid dowry to the complainant. But she and her father expressed their inability to pay the dowry and in the meantime, her parents died. During cross-examination, she stated that the accused refused to enjoy their conjugal life on the ground of non-payment of dowry amounting to Tk. 20,000 is not written in the complaint petition.

P.W. 2 Rosna Begum stated that at the time of marriage, the accused demanded dowry of Tk. 25,000 and Tk. 5000 was paid at the time of marriage and due to non-payment of the dowry, the accused refused to enjoy their conjugal life with the complainant.

P.W. 3 Abdul Haque stated that the accused married the complainant and enjoyed their conjugal life. After 09 months of their marriage, the complainant gave birth to a child. During cross-examination, he stated that he is a relation of the complainant and his house is situated one and a half miles away from the house of the complainant.

No one appears on behalf of the convict petitioner.

The learned Deputy Attorney General Mr. S.M. Golam Mostafa Tara appearing on behalf of the state submits that P.W. 1 Mosammat Rina Begum is the wife of the convict petitioner and on 24.05.2005 he partly received the dowry and refused to enjoy their conjugal life due to non-payment of the dowry amounting to Tk. 20,000 and committed the offence under section 4 of the Dowry Prohibition Act, 1980. He prayed for discharging the Rule.

I have considered the submission of the learned Deputy Attorney General Mr. S.M. Golam Mostofa Tara who appeared on behalf of the state, perused the evidence, impugned judgment and order passed by the courts below and the records.

On perusal of the records, it appears that P.W. 1 Rina Begum is the legally married wife of the convict petitioner and at the time of marriage registered on 24.05.2005, the father of the complainant paid Tk. 5,000 as dowry out of total demand of dowry amounting to Tk. 25,000 and due to non-payment of the dowry amounting to Tk. 20,000, the accused refused to enjoy their conjugal life. Subsequently, the complainant filed the complaint petition. The evidence of P.W. 1 regarding the demand of dowry by the convict petitioner is corroborated by P.Wd. 2 and 3 Both the courts below on correct assessment of the evidence arrived at a concurrent finding of facts that the convict petitioner demanded dowry and due to non-payment of the dowry amounting to Tk. 20,000, the convict petitioner refused to enjoy their conjugal life.

In view of the above evidence, facts and circumstances of the case, findings and proposition, I am of the view that the prosecution proved the charge against the convict petitioner beyond all reasonable doubt.

Considering the gravity of the offence, I am of the view that the ends of justice would be best served if the sentence passed by the trial court is modified as under;

The convict petitioner Sariful Islam is found guilty of the offence under section 4 of the Dowry Prohibition Act, 1980 and he is sentenced to suffer rigorous imprisonment for 01 (one) year and a fine of Tk. 3,000, in default, to suffer imprisonment for 1(one) month.

In the result, the Rule is disposed of with a modification of the sentence.

The convict petitioner is directed to surrender forthwith.

The trial Court is directed to do the needful.

Send down the lower Court's record at once.